

CURRENT CONDITIONS REPORTS ON CONSERVATION RESTRICTIONS

HELD BY BTA/BOLT Inc.

1. Written description of property ✓
2. Date CR recorded ✓
3. Map ✓
4. Photographs/ GPS ✓
- ⑤ Dated CR Monitoring Report filled out ✓
6. Signature of owner, dated ✓
7. Did original Grantor receive a tax deduction? *no - Not applicable*
8. *Open space context plan - 3*
- ⑨ *2007 monitoring report* ✓

Where Baseline Documentation is unavailable

Approved 2/14/08 BY BTA/BOLT, Inc. Board

BTA/BOLT, Inc. intends to submit "current conditions" reports on CRs that we hold where we lack baseline Documentation by July 1, 2008

Achenbach
 Boxford Town Forest ✓
 Cedar Pond Society
 Coolidge 100 Acres
 Price property

BTA/BOLT, Inc. PROPERTY INSPECTION REPORT

1. Property name: Townsend Farms

2. Location: 11 acres of land (T. Townsend Farms) (Boxford, MA)

Townsend Farms 11/21/2007

These 11 acres or so, are a wonderful example of wetlands, comprised of a tributary of Fish Brook, which is a tributary of the Ipswich River, adjoining freshwater wetlands and forested uplands representing a diversity of plant and wildlife habitat, including that of the endangered Blanding's Turtle.

BTA/BOLT, Inc. granted a Conservation Restriction to the Boxford Conservation Commission, recorded on November 30, 2007.

3. Date property was acquired: 08/19/04 Purchase of land from the landowner

4. Description of land: The property is a 11-acre parcel, mostly wetlands, with a small portion of forested uplands. The property is located on the south side of Fish Brook, which is a tributary of the Ipswich River.

5. Purpose of property: Conservation, wetlands.

BTA/BOLT Inc. PROPERTY INSPECTION REPORT

1. Property name: Townsend Farms

2. Location [street address]: Townsend Farm Road, Boxford, MA

3. Date of inspection: July 21, 2007

4. Size in acres: 11.77 acres

5. Does the property have a Conservation Restriction on it, if so, who holds it? Yes, held by the Boxford Conservation Commission

6. Owner name and address: BTA/BOLT, Inc. P.O. Box 95, Boxford, MA 01921

7. Date property was acquired: 03/23/04 Purchase or donation? Donation

8. Describe the details of your inspection [where you walked, etc.]: Basically, we walked around the accessible perimeter of the property, and looked inside at the pond, stream and wetlands

9. Present use of property: Conserved wetlands

10. Note any possible violations or encroachments: None observed

Monitor comments/Intended Follow-up

11. Describe any rare or unusual plant or animal life or sign thereof: None observed

12. Additional remarks [particularly as to the present condition of the property]: We would like to remove the small float visible in photo # 14

13. Names of monitoring team members: Mary Ellen Iorio and Nick Shrewsbury

14. Time spent on property: approximately an hour

15. Inspection team leader:

Mary Ellen Iorio
[printed name]

Mary Ellen Iorio via email
[signature]

BTA/BOLT LAND AND CONSERVATION

RESTRICTION MONITORING FORM

Nature Preserve: *Townsend Farms Parcel A*

Date: *5/11/04*

a) Visitor Use:

No. of individuals (make estimate if possible): *5-10 per week*

Name and Size of Organized Groups:

b) Did you observe any hazards or potential liability factors? *NO* Please explain.

c) Are the signs and boundary markers intact? If not, what maintenance is needed? *Yes*

d) Trail Condition: Good Average *✓* Poor *Question whether to install trail*
Problem areas needing attention:

e) Fauna noted:

Flora noted:

f) Are any of the following items a problem now, or do you see them as a problem in the future?

- | | |
|---|--|
| ☒ hunting | ☒ ORV's |
| ☐ road conditions | ☐ litter |
| ☒ vandalism | ☒ over use (<i>youth</i>) |
| ☐ erosion | ☒ fire (<i>youth</i>) |
| ☐ flooding | ☒ pollution (<i>youth</i>) |
| ☐ siltation | ☐ disease/pest infestation |
| ☐ access | ☐ boundaries |
| ☐ timber theft | ☐ community relations |
- Potential of the following being a problem w/ close proximity to neighbor's land*

Explain any of the above that need action beyond the scope of your responsibilities:

g) Note any particularly interesting observations:

h) Future management considerations:

Are there any projects that should be considered in the future to improve public access, education/recreation opportunities, management capability, etc.? Please explain.

i) This report was determined by observation of:

- | | |
|-------------------------------------|-----------------------|
| ☒ | part of boundary area |
| ☐ | entire boundary |
| ☒ | part of interior |
| ☐ | entire preserve |

Submitted by:

R. Ford

BTA/BOLT LAND AND CR ACQUISITION

BASELINE DATA FORM

Completed by: *R. Ford*

Date: *5/11/04*

1. PROPERTY NAME: *Townsend Farms Parcel A, Townsend Farms Rd*
Town: *Borford* County: *Essex*
Acres: *11.7* Determined by ☒ Survey
☒ Deed
☒ Tax Map
Landowner(s): *Townsend Farms Owner Ltd & ASDN* / *Julia Matthews*
Owner's Address: *51 Townsend Farms Rd* Phone: *887-5968*
Owner's Agent: *Andrew Evans, Esq.* Phone:
Agent's Address: *Topshfield, MA*

Other Contacts (Resource Consultants, etc.):

Deed: Book # *22544*

Page # *581*

- ☒ Well-defined description
☐ Title Work Necessary
☐ Known encumbrances:

2. DONOR OBJECTIVES: *Permanent Preservation*

3. ATTACHMENTS: ☐ Topo Map
☐ Type Map (Soils Map)
☒ Photographs

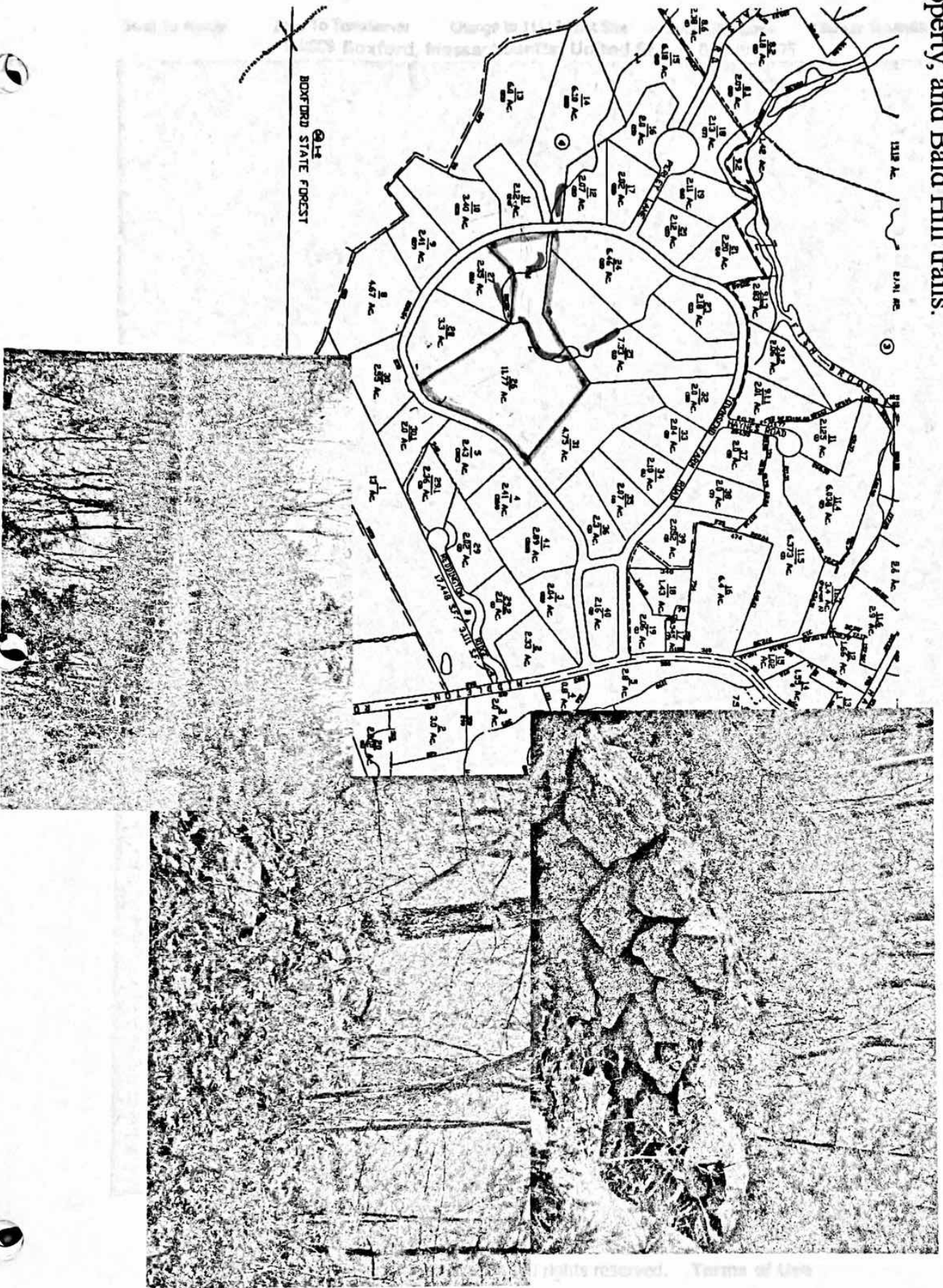
☒ Survey Map
☐ Other Maps
☒ Other

4. GENERAL PROPERTY INFORMATION

- *See flyer inside*
- *Need to convey CR to Borford Conserv*

- *Assessor's map*
- *AIS map*

Townsend Farm Parcel A, 11.77 acres owned by The Townsend Farm Greenbelt Association. Contains tributary to Fish Brook, several old stone walls, mixed evergreen and deciduous forest and wetlands, short walking path, fire pond used as a fishing hole, one potential building lot, and proximity to Boxford State Forest, Price Property, and Bald Hill trails.



Send To Printer

Back To TerraServer

Change to 11x17 Print Size

Show Grid Lines

Change to Landscape

USGS Boxford, Massachusetts, United States 03 Apr 1995

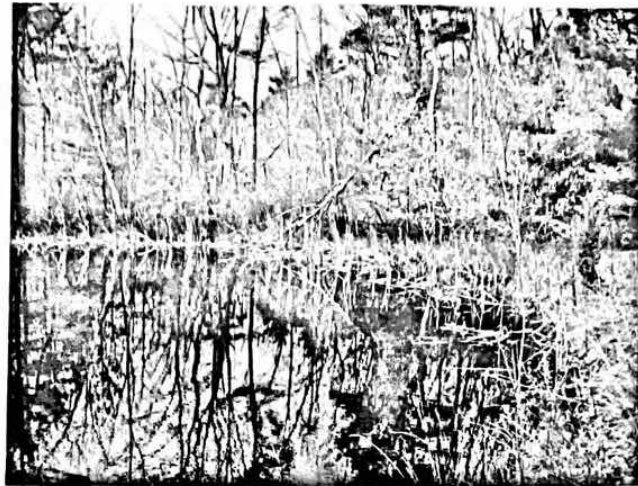


0 100M

0 100yd

Image courtesy of the U.S. Geological Survey
© 2003 Microsoft Corporation. All rights reserved. **Terms of Use**

PRELIMINARY PHOTOGRAPHIC INVENTORY



Looking Northwesterly from Townsend Farms Road



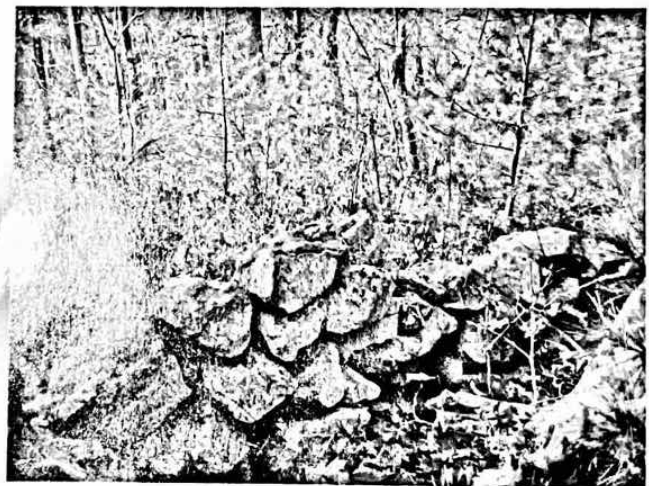
Stonewall at Northeasterly corner of lot



Looking North toward Brook in center of lot



Stonewall along Northerly lot line



Stonewall along Easterly lot line

MUNICIPAL GOVERNMENT
TOWNSEND FARM SUBDIVISION
PARTIAL RELEASE OF TOWNSEND FARMS
SUPPLEMENTARY SUBDIVISION COVENANT

2004032300055 Bk:22544 Pg:579
03/23/2004 09:31:00 ML Pg 1/1

To permanently preserve the open space parcel within the Townsend Farms Subdivision shown as "Parcel A" on the approved subdivision plan recorded with the Essex South District Registry of Deeds in Plan Book 214, Plan 79 and as required by the Supplementary Subdivision Covenant recorded with said registry in Book 8634, Page 592, the Planning Board of the Town of Boxford does hereby release supplementary covenants 8 and 9 subject to the following condition:

No dwelling units shall be placed within Parcel A nor shall any motorized recreational vehicles be permitted to use said property. All remaining covenants shall remain in full force and effect to the extent permitted by law.

At a regularly scheduled meeting on November 5, 2003, upon motion duly made and seconded it was

VOTED to approve the release of Townsend Farms Supplemental Covenants 8 and 9.

Town of Boxford Planning Board

Signed this 5th day of November, 2003

[Handwritten signatures of Robert Gore and others]
Robert Gore
[Signature]
[Signature]

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

11/5, 2003

Then personally appeared the above-named Robert Gore, Chairman and acknowledged the foregoing to be his free act and deed ad the free act and deed of the Boxford Planning Board, before me

[Handwritten signature of Notary Public]
Notary Public
My Commission Expires: 1/29/04

Return to: BTD/2005
Box 90
Boxford, MA 01521

**MUNICIPAL CERTIFICATION
TOWNSEND FARM PROPERTY
Boxford Conservation Restriction #**

The undersigned Conservation Commission of the Town of Boxford hereby certifies that the proposed Conservation Restriction is in the public interest in that:

- The Premises contains a stream that is a tributary of Fish Brook, itself a tributary of the Ipswich River;
- The Premises is within the Ipswich River watershed, one of the most highly stressed watersheds in the country in terms of river flow and water supply demand.
- The Premises contains freshwater wetlands and forested upland, with diverse plant and wildlife habitat, including habitat for the rare Blanding's Turtle;
- Conservation of the Property is consistent with the 1996 Master Plan of the Town of Boxford.
- Protecting water resources and preserving rural character are identified as goals of the Open Space and Recreation Plan of the Town of Boxford;
- The Open Space and Recreation Plan of the Town of Boxford identifies conservation restrictions as one of the techniques to help the Town's open space goals.

Boxford Conservation Commission

Signed: _____

APPENDIX B

Townsend

FARM Parcel A

EXECUTIVE OFFICE OF ENVIRONMENTAL AFFAIRS
DIVISION OF CONSERVATION SERVICES

100 Cambridge St., 9th fl.
Boston, MA 02114-2150
(617) 626-1011

DATE: _____

MUNICIPALITY: _____

NUMERIC
ASSIGNMENT: _____

CONSERVATION RESTRICTION APPLICATION FORM

Pursuant to the provisions of M.G.L. ch. 184. §32. the Secretary of Environmental Affairs is hereby requested to approve a conservation restriction as described below:

A. GENERAL INFORMATION

1. GRANTOR: Boxford Town Assoc / Boxford Open Land Trust Inc
(Name)
7 ELM St P.O. Box 95 Boxford MA 01921
(Address)

978-887-7031
(Telephone No.)

JUDY GORE
(Contact Person)

2. GRANTEE: Town of Boxford - conservation Commission
(Name)
Boxford Town Hall 7A Spofford Rd Boxford MA 01921
(Address)

978-887-6000
(Telephone No.)

ROSS ROVENMIRE
(Contact Person)

3. TYPE OF RESTRICTION: a. Conservation Only: ☒
b. Joint Restriction: ☐
Type: _____
(agricultural, historical, watershed)

4. STATE FUNDS INVOLVED yes ☐ no ☒
☐ CPA
☐ Grant (type)
☐ Other

5. PUBLIC OFFICIALS:
State Representative(s) _____
State Senator(s) _____
Other involved Official(s) _____

NOTES:

If the grantee is a non-profit charitable corporation or trust, proof must be provided that it is a qualified charitable organization in accordance with M.G.L. c.180 §4(a) or (l) and the I.R.S. Code Section 501(c) (3). The Division also reserves the right to review the organization's by-laws and list of officers if warranted.

Regardless of whether the grantee is a qualified private non-profit organization or a city or town or commission, authority, or instrumentality thereof, the local conservation commission must define the reasons for preserving the property and

it should be distinguished at the outset from an agricultural preservation restriction which is approved by the Commissioner of Food and Agriculture for the Commonwealth, 251 Causeway Street, Boston, MA 02114-2150, and from an historical preservation restriction, which is approved by the Massachusetts Historical Commission 80 Boylston Street, Rm. 310, Boston, MA 02116, and from a watershed preservation restriction which is approved by the Commissioner of the Department of Conservation and Recreation, 251 Causeway St., Boston, MA 02114-2150.

It is possible for a restriction to fit into more than one category, requiring more than one approval. If a joint restriction, has the approval process been started with either the Commissioners of Food and Agriculture, DCR or the Massachusetts Historical Commission?

☐ Yes

☒ No

4. GRANTOR'S INTENT

a. Charitable contribution: ☐ Yes ☒ No

Do you intend to claim an IRS income tax deduction?

☐ Yes

☒ No

b. Required as part of municipal or state permitting process:

☐ Yes

☒ No

1. Is this restriction required by a M.G.L. C.40A §9 special permit?

☐ Yes

☒ No

(Please attach a copy of the permit(s) as an exhibit)

2. Is this restriction required by M.G.L. C.131, §40 Wetlands Order of Conditions? ☐ Yes ☒ No

(Please attach a copy of the Order of Conditions)

3. Other?

☐ Yes

☒ No (please explain)

c.. Other: Please explain (for example, sale of a C.R. to a public agency):

d. Is this a perpetual restriction? ☒ Yes ☐ No If less than permanent, for how many years: _____

B. PUBLIC BENEFIT

1. Is the restriction for the preservation of land areas for outdoor recreation by, or the education of, the general public? ☒ Yes ☐ No
2. Is the restriction for the protection of a relatively natural habitat of fish, wildlife, or plants, or similar ecosystems? ☒ Yes ☐ No
3. Is the restriction for the preservation of open space (including farmland and forest land) where such preservation is:
 - a. pursuant to a clearly delineated federal, state, local governmental policy, and will yield a significant public benefit? ☒ Yes ☐ No
 - b. for the scenic enjoyment of the general public and will yield a significant public benefit? ☒ Yes ☐ No
4. Is the property historically significant? One that meets National Register Criteria or is within a registered historic district or contributes to the integrity of an historic building or property? ☐ Yes ☒ No
5. Other public benefit? ☒ Yes ☐ No (if yes, please explain)

NOTES:

The Secretary will find sufficient evidence of the "public interest" if the applicant can show that the restriction meets any of the tests for deductibility under the Internal Revenue Service Code Section 170(h) and the Regulations promulgated thereunder, or a private letter ruling by the Internal Revenue Service shall be deemed sufficient for establishing such deductibility, or the applicant makes an independent showing of eligibility for deductibility.

The letter ruling or documentation demonstrating eligibility for deductibility should be attached along with this application. Regardless of the intent of the grantor's gift, the Secretary's determination of public interest will be dependent upon how well the applicant demonstrates public interest; however, grantors should be advised that the Secretary reserves the right to

require modifications to the conservation restriction where in his/her opinion the retained rights adversely impact the public interest or natural resource values of the property or when the document is improperly drafted.

C. **SITE DATA**

Location:

1. Municipality Boxford Street Location Townsend Farm Rd
2. Grantor's Registry of Deeds Bk. # 22544 Page # 581
3. Assessors Map # 32-4 Lot # 26
4. New Site: ☒ Addition to existing restricted area: _____ (please specify)

Zoning: Commercial ☐ Industrial ☐ Residential ☒ (check all that apply)

Title: Does application have clear title? ☒ Yes ☐ No Assent of mortgagee(s) is required.
If no, please explain:

Encumbrances: Is the property encumbered by any easement(s)? ☐ Yes ☐ No
Please explain:

Geographic Information:

1. Total acres covered by restriction: 11.77
A) Total Unrestricted Acres: _____
2. Cover: acres in
A. Upland Forest 5.77 B. Open (field, pasture, etc.) 2
C. Vegetated Wetland 4 D. Water 1
3. Topography: acres in
A. Flat _____ B. Hilly _____
C. Rolling 11.77 D. Mountains _____
4. Water front: feet on
A. Ocean 0 B. River 0
C. Stream _____ D. Lake 0

Please identify waterbody Stream feeding Fish Brook

General information:

1. Are there nay improvements existing on the property, or to be permitted after execution of the C.R.? ☐ Yes ☒ No If yes, please describe in detail:

2. Is the property currently under any of the preferential real estate tax assessment programs?

☐ Yes

☒ No

If yes, which one:

c.61 ☐

c.61A ☐

c. 61B ☐

NOTE:

If the restriction lies in more than one community, the Site Data form must be completed for that portion of the restriction within each community.

3. If the property is under agricultural use, is the soil considered prime or of statewide agricultural significance?

☐ Yes

☒ No

(If yes, USDA Soil Conservation Service data must be provided)

4. Is the property adjacent to any public or quasi-public land or buildings? ☐ Yes ☒ No

Describe briefly:

5. Does the property lie within an historic district, include an archaeological or rare species site, fall within a Department of Environmental Management designated scenic landscape, river, or within an Executive Office of Environmental Affairs designated Area of Critical Environmental Concern, a Zone II of a public water supply etc.? Please explain:

NO

6. Will public access be allowed? ☒ Yes ☐ No If yes, explain any limitations, type, etc.:

Prepared by: _____

Address: _____

(telephone number) _____

121 Huntington Avenue
Boston, MA 02116-7813
Tel: 617 267 3000
Fax: 617 267 3000
617 267 3011

- | | | | |
|----|---|---|--|
| a. | Conservation Restriction (required) | ☒ Yes | ☐ No |
| b. | USGS Topographic map with area identified thereon (required) | ☒ Yes | ☐ No |
| c. | Photographs (required); aerial (if available) | ☒ Yes | ☐ No |
| d. | Applicable federal, state or local plans, programs (exerpts therefrom)
Or zoning ordinances, if appropriate (Assessor's map) | ☒ Yes | ☒ No |
| e. | Survey, plotmap, or sketch plan (required) | ☒ Yes | ☐ No |
| f. | Special reports, studies, (if available) | ☐ Yes | ☒ No |
| g. | Natural resource inventory, (if available) | ☐ Yes | ☒ No |
| h. | Wetlands Order of Conditions C.131. §40, (if applicable) | ☐ Yes | ☒ No |
| i. | C. 40A, §9 Special Permit, (if applicable) | ☐ Yes | ☒ No |
| j. | I.R.S. letter ruling, (if applicable) | ☐ Yes | ☒ No |
| k. | Charitable status documentation, (if applicable) | ☐ Yes | ☐ No |
| l. | Assent of mortgagee(s) (if applicable) | ☐ Yes | ☒ No |
| m. | USDA Soil Data, (if applicable) | ☐ Yes | ☒ No |
| n. | Other (please specify) | ☐ Yes | ☐ No |

1. TYPE OF RESTRICTION:

a. Conservative Only ☒ Other ☐

b. Adult Population ☐

Type: Agricultural, Historical, water shed

2. STATE FUNDS RECEIVED (yes or no):

DCPA ☐

Other ☐

3. PUBLIC OFFICIALS:

State Representative(s) _____

State Senator(s) _____

County Board of Official(s) _____

The conservation restriction must be prepared in a form suitable for recording and be approved and signed by the grantor, grantee, and municipal official(s). The applicant may wish to submit a draft of the conservation restriction document for a determination as to whether it is acceptable for approval by the Secretary. This procedure is recommended in situations in which the gift is complex or the applicant needs guidance in drafting an acceptable document. Regardless of whether the applicant files a draft or executed conservation restriction, all required attachments must be submitted for review.

The Division of Conservation Services, as part of its records retention program and in conjunction with the Massachusetts State Archivist, will retain the grantee's baseline data in the State Archives at no cost. Grantees need

APPENDIX B

EXECUTIVE OFFICE OF ENVIRONMENTAL AFFAIRS
DIVISION OF CONSERVATION SERVICES
 100 Cambridge St., 9th fl.
 Boston, MA 02114-2150
 (617) 626-1011

DATE: _____

MUNICIPALITY: _____

NUMERIC
 ASSIGNMENT: _____

CONSERVATION RESTRICTION APPLICATION FORM

Pursuant to the provisions of M.G.L. ch. 184. §32, the Secretary of Environmental Affairs is hereby requested to approve a conservation restriction as described below:

A. GENERAL INFORMATION

1. GRANTOR:

Boxford Trails Assoc / Boxford Open Land Trust (BTA/BoxT)
 (Name)
7 Elm St P.O. Box 95 Boxford MA 01921
 (Address)
978-887-7031
 (Telephone No.) JUDY GORE
 (Contact Person)

2. GRANTEE:

Town of Boxford - Conservation Commission
 (Name)
Boxford Town Hall 7A Spofford Rd Boxford MA 01921
 (Address)
978-887-6000
 (Telephone No.) ROSS POVENMIRE
 (Contact Person)

3. TYPE OF RESTRICTION:

a. Conservation Only: ☒

b. Joint Restriction: ☐

Type: _____
 (agricultural, historical, watershed)

4. STATE FUNDS INVOLVED yes ☐ no ☒

☐ CPA

☐ Grant (type)

☐ Other

5. PUBLIC OFFICIALS:

State Representative(s) _____

State Senator(s) _____

Other involved Official(s) _____

NOTES:

If the grantee is a non-profit charitable corporation or trust, proof must be provided that it is a qualified charitable organization in accordance with M.G.L. c.180 §4(a) or (l) and the I.R.S. Code Section 501(c) (3). The Division also reserves the right to review the organization's by-laws and list of officers if warranted.

Regardless of whether the grantee is a qualified private non-profit organization or a city or town or commission, authority, or other instrumentality thereof, the local conservation commission must define the reasons for preserving the property and certify that the restriction is in the public interest (please refer to page 7).

A conservation restriction is a voluntary limitation on the use of land designed to preserve it from adverse future change. But

it should be distinguished at the outset from an agricultural preservation restriction which is approved by the Commissioner of Food and Agriculture for the Commonwealth, 251 Causeway Street, Boston, MA 02114-2150, and from an historical preservation restriction, which is approved by the Massachusetts Historical Commission 80 Boylston Street, Rm. 310, Boston, MA 02116, and from a watershed preservation restriction which is approved by the Commissioner of the Department of Conservation and Recreation, 251 Causeway St., Boston, MA 02114-2150.

Is possible for a restriction to fit into more than one category, requiring more than one approval. If a joint restriction, has the approval process been started with either the Commissioners of Food and Agriculture, DCR or the Massachusetts Historical Commission?

☐ Yes

☒ No

4. GRANTOR'S INTENT

a. Charitable contribution: ☐ Yes ☒ No

Do you intend to claim an IRS income tax deduction? ☐ Yes ☒ No

b. Required as part of municipal or state permitting process: ☐ Yes ☒ No

1. Is this restriction required by a M.G.L. C.40A §9 special permit? ☐ Yes ☒ No

(Please attach a copy of the permit(s) as an exhibit)

2. Is this restriction required by M.G.L. C.131, §40 Wetlands Order of Conditions? ☐ Yes ☒ No

(Please attach a copy of the Order of Conditions)

3. Other? ☐ Yes ☒ No (please explain)

c. Other: Please explain (for example, sale of a C.R. to a public agency):

d. Is this a perpetual restriction? ☒ Yes ☐ No

If less than permanent, for how many years: _____

PUBLIC BENEFIT

1. Is the restriction for the preservation of land areas for outdoor recreation by, or the education of, the general public? ☒ Yes ☐ No

2. Is the restriction for the protection of a relatively natural habitat of fish, wildlife, or plants, or similar ecosystems? ☒ Yes ☐ No

3. Is the restriction for the preservation of open space (including farmland and forest land) where such preservation is:

a. pursuant to a clearly delineated federal, state, local governmental policy, and will yield a significant public benefit? ☒ Yes ☐ No

b. for the scenic enjoyment of the general public and will yield a significant public benefit? ☒ Yes ☐ No

4. Is the property historically significant? One that meets National Register Criteria or is within a registered historic district or contributes to the integrity of an historic building or property? ☐ Yes ☒ No

5. Other public benefit? ☒ Yes ☐ No (if yes, please explain)

a connection between natural areas of Oxford State
Forest, Towne Pond & Fish Brook

NOTES:

The Secretary will find sufficient evidence of the "public interest," if the applicant can show that the restriction meets any of the tests for deductibility under the Internal Revenue Service Code Section 170(h) and the Regulations promulgated thereunder, or a private letter ruling by the Internal Revenue Service shall be deemed sufficient for establishing such deductibility, or the applicant makes an independent showing of eligibility for deductibility.

The letter ruling or documentation demonstrating eligibility for deductibility should be attached along with this application. Regardless of the intent of the grantor's gift, the Secretary's determination of public interest will be dependent upon how well the applicant demonstrates public interest; however, grantors should be advised that the Secretary reserves the right to

C. SITE DATA

Location:

1. Municipality Boxford Street Location Townsend Farm Rd Parcel A
2. Grantor's Registry of Deeds Bk. # 22544 Page # 581
3. Assessors Map # 32-4 Lot # 26
4. New Site: ☒ Addition to existing restricted area: _____ (please specify)

Zoning: Commercial ☐ Industrial ☐ Residential ☒ (check all that apply)

Title: Does application have clear title? ☒ Yes ☐ No Assent of mortgagee(s) is required.
If no, please explain:

Encumbrances: Is the property encumbered by any easement(s)? ☒ Yes ☐ No
Please explain:

Drainage easement - 2 small sections between Lot 26 & Parcel A and Lot 12 & Parcel A

Geographic Information:

1. Total acres covered by restriction: 11.77
- A) Total Unrestricted Acres: 0
2. Cover: acres in

A. Upland Forest	<u>4.77</u>	B. Open (field, pasture, etc.)	<u>2</u>
C. Vegetated Wetland	<u>4</u>	D. Water	<u>1</u>
3. Topography: acres in

A. Flat	_____	B. Hilly	_____
C. Rolling	<u>11.77</u>	D. Mountains	_____
4. Water front: feet on

A. Ocean	_____	B. River	_____
C. Stream	<u>500'</u>	D. Lake	_____

Please identify waterbody no name

General information:

1. Are there nay improvements existing on the property, or to be permitted after execution of the C.R.? ☐ Yes ☒ No If yes, please describe in detail:

2. Is the property currently under any of the preferential real estate tax assessment programs?

978-887-7031
(telephone number)

☐ Yes ☒ No If yes, which one: c.61 ☐ c.61A ☐ c.61B ☐

NOTE:

If the restriction lies in more than one community, the Site Data form must be completed for that portion of the restriction within each community.

3. If the property is under agricultural use, is the soil considered prime or of statewide agricultural significance?

☐ Yes ☒ No (If yes, USDA Soil Conservation Service data must be provided)

4. Is the property adjacent to any public or quasi-public land or buildings? ☒ Yes ☐ No

Describe briefly:

Boxford State Forest + Boxford Wildlife Sanctuary

5. Does the property lie within an historic district, include an archaeological or rare species site, fall within a Department of Environmental Management designated scenic landscape, river, or within an Executive Office of Environmental Affairs designated Area of Critical Environmental Concern, a Zone II of a public water supply etc.? Please explain:

NO

6. Will public access be allowed? ☒ Yes ☐ No If yes, explain any limitations, type, etc.:

no motorized vehicles, camping, hunting or trapping
used only during daylight hours

Prepared by:

Judy Gore

Address:

BTA/BOLE

Box 95 Boxford MA 01921

978-887-7031

(telephone number)

CONSERVATION RESTRICTION

The undersigned, Boxford Trails Association/Boxford Open Land Trust, Inc. (BTA/BOLT), a Massachusetts nonprofit corporation incorporated under the laws of the Commonwealth of Massachusetts with an address of 7 Elm Street, P.O. Box 95, Boxford, Massachusetts for nominal consideration, hereby GRANTS, with QUITCLAIM COVENANTS, to the Town of Boxford, a Massachusetts municipal corporation acting by and through its Conservation Commission pursuant to Mass. Gen. L. ch. 40, § 8C, having its principal office at Boxford Town Hall, 7A Spofford Road, Boxford, Massachusetts 01921, its successors and permitted assigns, in perpetuity and exclusively for conservation purposes, a Conservation Restriction on a parcel of land located in Boxford, Essex County, Massachusetts *containing approximately 11.77 acres shown as Parcel "A" on a subdivision plan entitled "Definitive Subdivision Plan of Townsend Farms in Boxford, Massachusetts, owner and applicant Middleton Road Boxford Realty Trust, Engineer Hancock Survey Associates, Scale 1" = 200', dated December 2, 1985," (the "Plan") recorded in Essex South District Registry of Deeds Plan Book 214, Plan 79 and incorporated herein by reference (the "Property").* Said BTA/BOLT and its successors, in title to the Property are hereinafter called the "Grantor" and the Boxford Conservation Commission and its successors and permitted assigns are hereinafter called the "Grantee". For Grantor's title see deed recorded with Essex South District Registry of Deeds at Book 22544, Page 581. *Exhibit A*

I. PURPOSES

This Conservation Restriction is defined in and authorized by Sections 31-33 of Chapter 184 of the Massachusetts General Laws and otherwise by law. Its purposes are to assure that the Property will be retained in its natural, scenic and undeveloped condition and to prevent any use of the Property that will significantly impair or interfere with the conservation values of the Property. *The protected conservation values and the public benefits resulting from the protection of the Property in the manner provided in this Conservation Restriction include the following, without limitation:*

1. Construction or placing of any building, structure, facility or improvement on, over or under the Property, including but not limited to tennis courts, landing strips or pads, mobile homes, swimming pools, septic systems, roads, signs, fences, billboards or other advertising display, utilities, conduits, poles, antennas, towers, monopoles, windmills, solar panels, docks, wharfs, or other temporary or permanent structures, facilities, or improvements of any kind on, over or under the ground unless otherwise permitted in Paragraph B.2 below;
2. Dumping or placing of soil, grass clippings, compost, yard debris or other substances on the ground as landfill, or dumping or placing of vehicle bodies or parts, junk, trash, refuse, solid or chemical waste or unsightly or offensive materials, or the installation of underground storage tanks;
3. Cutting, removal, harvesting or destruction of trees, grasses, shrubs or other vegetation unless otherwise permitted in Paragraph B below;
3. Mining, excavating, dredging or removal from the Property of loam, peat, sand, gravel, soil, rock or other mineral substances or natural deposits except as necessary for proper drainage or soil conservation and then only in a manner which does not impair the purposes of this Conservation Restriction after consultation with and approval by the Grantee;
4. Any commercial use or activity, unless the activity is otherwise permitted in Paragraph B below; any residential or industrial use or activity; and any municipal use not related to the purposes of this Conservation Restriction;
5. Use of motorized vehicles of any nature or kind, including but not limited to cars, trucks, motorcycles, all-terrain vehicles and snowmobiles, except such as may be reasonably required by police, firemen or other governmental agents in carrying out their lawful duties or for reasonable access by persons with disabilities, and except for cars, trucks and farm vehicles used for purposes permitted by this Conservation Restriction as provided in Paragraph B below;

D. Notice to and Approval by Grantee. Whenever notice to or approval by the Grantee is required under the provisions of Paragraphs A, B or C of Section II, or any other provision or condition herein, the Grantor shall notify the Grantee in writing not less than thirty (30) days prior to the date the Grantor intends to undertake the activity in question. The notice shall describe the nature, scope, design, location, timetable and any other material aspect of the proposed activity in sufficient detail to permit the Grantee to make an informed judgment as to its consistency with the purposes of this Conservation Restriction. Where the Grantee's approval is required by the terms of this Conservation Restriction, the Grantee shall grant or withhold its approval in writing within thirty (30) days of receipt of the Grantor's written request therefore. Grantee's approval may be withheld upon a determination by the Grantee at its sole discretion that the action as proposed would be inconsistent with the purposes of this Conservation Restriction. Failure by the Grantee to respond within that time period will be deemed an approval of the activity.

III. ACCESS

A. Access by the Grantee. The Grantee through its duly designated officers, directors, members, employees, representatives or agents shall have the right to enter the Property following reasonable notice and at reasonable times and in a reasonable manner for the purpose of inspecting the Property and determining compliance with the terms of this Conservation Restriction.

B. Access by the Public. The Grantor recognizes that certain portions of the Property are presently used by the general public to pass and repass by foot, horseback, snowshoe and cross country ski for purposes of quiet outdoor recreational and educational activities. The Grantor and its successors and assigns shall permit the continuance of such activities provided (1) that any such activity shall be limited to daylight hours only (unless otherwise permitted by BTA/BOLT); (2) that no motor vehicles of any kind other than those for reasonable access by persons with disabilities shall be permitted; (3) that no camping, hunting, trapping or discharge of firearms shall be conducted; (4) that no dumping, waste disposal, or littering of any kind be allowed; and (5) that no activity of a commercial nature be allowed. The Grantor hereby reserves

the purpose of preserving and conserving natural resources, natural habitats, environmentally sensitive areas and for other charitable, scientific and educational purposes, that it has both the necessary funds and commitment to hold this Conservation Restriction exclusively for conservation purposes in perpetuity and to enforce its terms, and that it is a "Qualified Organization" as that term is defined in Section 170 (h) (3) of the Internal Revenue Code of 1986, as amended.

C. Required Notification of Transfers. The Grantor shall notify the Grantee in writing at least thirty (30) days before conveying the Property, or any part thereof or interest therein (including a leasehold interest or option). The Grantee shall notify the Grantor in writing at least thirty (30) days before it assigns this Conservation Restriction. Any failure by Grantor or Grantee to provide notification as provided for herein shall not invalidate or extinguish this Conservation Restriction or limit its enforceability in any way.

VII. EXTINGUISHMENT

A. Termination or Extinguishment. This Conservation Restriction can only be terminated or extinguished, whether in whole or in part, by judicial proceedings in a court of competent jurisdiction, based on circumstances arising in the future that render the purposes of this Conservation Restriction impossible to accomplish, or by two-thirds vote of the General Court pursuant to statutory process.

B. Grantee's Receipt of Property Rights. The Grantor and Grantee agree that if this Conservation Restriction should ever be terminated or extinguished, the proceeds, if any, shall first be distributed to the Grantor, or their successors or assigns, for the purchase of other land in Boxford for similar conservation and recreational purposes as stated herein and Grantor shall convey to Grantee a conservation restriction on such land similar in form and purpose to the conservation values stated herein. If, within 30 days of such termination or extinguishment, no other similar land is available for purchase by Grantor, then the Grantee, on a subsequent sale, exchange or involuntary conversion of the Property, shall be entitled to a portion of the proceeds equal to such proportionate value described in Paragraph C below, subject however, to any applicable law which expressly provides for a different disposition of proceeds.

therein, by the Grantee, its successors and assigns and its duly designated officers, directors, members, employees or agents as holders of this Conservation Restriction.

C. Termination of Rights and Obligations. Notwithstanding anything to the contrary contained herein, the rights and obligations under this Conservation Restriction of any party holding any interest in the Property shall terminate upon transfer of that party's interest in the Property. Liability for acts or omissions occurring prior to any transfer and liability for any transfer in violation of this Conservation Restriction shall survive the transfer.

D. Prior Encumbrances. This Conservation Restriction shall be in addition to and not in substitution of any other restrictions or easements of record affecting the Property.

E. Pre-Existing Rights of the Public. The approval of this Conservation Restriction by any municipal or state authority is not to be construed as representing the existence or nonexistence of any pre-existing rights of the public, if any, in and to the Property. Any pre-existing rights of the public are not affected by the granting of this Conservation Restriction.

F. Execution of Instruments. The Grantee is authorized to record or file any notices or instruments appropriate to assuring the perpetual enforceability of this Conservation Restriction. The Grantor and its successors and assigns agree to execute any such instrument its review and approval.

G. Effective Date. The Grantor and the Grantee intend that the restrictions arising hereunder take effect when all the requisite signatures pursuant to Section 32 of Chapter 184 of the General Laws of Massachusetts have been obtained and this document has been recorded in the appropriate Essex County Registry of Deeds.

Timothy Manner

H. Controlling Law. The interpretation of this Conservation Restriction shall be governed by the laws of the Commonwealth of Massachusetts.

I. Liberal Construction; Severability. This Conservation Restriction shall be liberally construed in favor of the grant to effect its conservation purposes and the

QUITCLAIM DEED

KNOW ALL MEN BY THESE PRESENTS that TOWNSEND FARMS GREENBELT ASSOCIATION, INC., a duly organized Massachusetts Corporation with a principal place of business at 51 Townsend Farm Road, in Boxford, Essex County, Massachusetts (the "Grantor"), for consideration of One (\$1.00) Dollar paid, grants to BTA/BOLT, Inc., a Massachusetts non-profit Corporation with a usual place of business at 7 Elm Street, Boxford, Essex County, Massachusetts, with QUITCLAIM COVENANTS, all its right, title and interest in and to the certain parcel of land situated in Boxford, Essex County, Massachusetts, shown as Parcel "A" on a subdivision plan entitled "Definitive Subdivision Plan of Townsend Farms in Boxford, Massachusetts, owner and applicant Middleton Road Boxford Realty Trust, Engineer Hancock Survey Associates, Scale 1" = 200', dated December 2, 1985," recorded in Essex, SS. 2003
Then personally appeared the above-named Anna Mathews, President and Susan
acknowledged the foregoing instrument to be their free act and deed and the free act and deed
dated November 19, 1986, recorded in said Registry as Instrument No. 186 of November 19, 1986.

Subject to and with the benefit of all easements, agreements, restrictions and encumbrances of record insofar as the same are in force and applicable.

For Grantor's title, see Deed of Douglas R. Conn and Peter S. Confalone, Trustees of the Middleton Road Boxford Realty Trust recorded with the Essex South District Registry of Deeds in Book 12503, Page 314. See also Confirmatory Deed of Douglas R. Conn and Peter S. Confalone, Trustees, dated April 19, 2002 and recorded prior hereto.

WITNESS the execution hereof under seal this _____ day of _____, 2003.

Townsend Farms Greenbelt
Association, Inc.

By: _____
Julia Mathews, President

By: _____
Susan Glazier, Treasurer

COMMONWEALTH OF MASSACHUSETTS

Essex, SS.

_____, 2003

Then personally appeared the above-named Julia Mathews, President and Susan Glazier, Treasurer as Officers of the Townsend Farms Greenbelt Association, Inc., and acknowledged the foregoing instrument to be their free act and deed and the free act and deed of said corporation, before me,

NOTARY PUBLIC
My Commission expires:

Townsendgreen-ac

BTA/BOLT



Boxford Trails Association / Boxford Open Land Trust

Post Office Box 95, Boxford, MA 01921 • (978) 887-7031

Finalized

To: Executive Office of Environmental Affairs Division of Conservation Services

From: Boxford Trails Association/Boxford Open Land Trust BTA/BOLT

Subject: CR on Townsend Farms Parcel A

Date: March 21, 2007

We are submitting the above CR and forms and attachments for your approval.
Our phone number is 978-887-7031 or 978-887-0324 and my e-mail is chippip@aol.com

Thank..you

Judy Gore, president BTA/BOLT

Subj: FW: exhibit
Date: Wednesday, October 31, 2007 2:42:24 PM
From: Nicole.Sicard@state.ma.us
To: chippip@aol.com

Nicole Sicard
Administrative Assistant
Executive Office of Energy and Environmental Affairs
(617) 626-1011

From: Soper, Jennifer (EEA) [mailto:Jennifer.Soper@state.ma.us]
Sent: Monday, October 29, 2007 2:50 PM
To: Sicard, Nicole (EEA)
Subject: exhibit

Hi -

The first paragraph needs to define the "premises" - that means the land subject to the CR.
so - Exhibit A is a legal description or a plan of land (some people do both - so there's 2 exhibits) of the "premises" - the land subject to the CR.

This CR needs to state something like:

in perpetuity and exclusively for conservation purposes, the following Conservation Restriction on a parcel of land located in the Town of Boxford, Massachusetts constituting approximately XXX acres("Premises"), and more particularly described in Exhibit A and attached plan/sketch plan.

Jennifer Jillson Soper, Regional Planner
Executive Office of Energy & Environmental Affairs
Division of Conservation Services
100 Cambridge St., Suite 900
Boston, MA 02114
(617) 223-1745

October 25, 2007

**Jennifer Jillson Sopher, Regional Planner
Division of Conservation Services**

**Dear Jennifer,
Enclosed please find CR # 32 (BTA/BOLT to Town of Boxford Conservation
Commission – Townsend farms).**

**We have made the changes you suggested and gotten the required signatures. The
property involved is described on page 1 of the CR so we have not included an Exhibit A.**

We hope this meets the requirements and thank you for all your help.

Sincerely,

Judy Gore, Vice president